

1 AN ACT relating to deputy coroner training.

2 ***Be it enacted by the General Assembly of the Commonwealth of Kentucky:***

3 ➔Section 1. KRS 72.415 is amended to read as follows:

- 4 (1) For the purpose of enforcing~~[the provisions of]~~ KRS 72.410 to 72.470, coroners
5 and deputy coroners~~[shall]~~ have the full power and authority of peace officers in
6 this state, including the power of arrest and the authority to bear arms~~[,]~~ and~~[shall]~~
7 ~~have the power and authority]~~ to:
- 8 (a) Administer oaths;
 - 9 (b) Enter upon public or private premises for the purpose of making
10 investigations;
 - 11 (c) Seize evidence;
 - 12 (d) Interrogate persons;
 - 13 (e) Require the production of medical records, books, papers, documents, or other
14 evidence;
 - 15 (f) Impound vehicles involved in vehicular deaths;
 - 16 (g) Employ special investigators and photographers; and
 - 17 (h) Expend funds for the purpose of carrying out~~[the provisions of]~~ KRS 72.410
18 to 72.470.

19 The fiscal court or urban-county government shall pay all reasonable expenses
20 incurred by the coroner and his or her deputy in carrying out his or her
21 responsibilities under~~[the provisions of]~~ KRS 72.410 to 72.470.

- 22 (2) (a) 1. ~~A[No]~~ person shall **not** be eligible to hold the office of deputy coroner
23 unless he or she holds a high school diploma or its recognized
24 equivalent. Every deputy coroner, other than a licensed physician, shall
25 be required as a condition of office to take during every calendar year he
26 or she is in office the training course of at least eighteen (18) hours
27 provided by the Department of Criminal Justice Training or other

1 courses approved by the Justice and Public Safety Cabinet after having
2 completed the basic training course the first year of employment. The
3 training course shall include material developed by the cabinet and
4 approved by the Cabinet for Health and Family Services on the human
5 immunodeficiency virus infection and acquired immunodeficiency
6 syndrome. The material shall include information on known modes of
7 transmission and methods of controlling and preventing these diseases
8 with an emphasis on appropriate behavior and attitude change.

9 2. Within three (3) years of initially assuming office, every deputy coroner
10 shall be required as a condition of office to take a course of at least four
11 (4) hours provided by the Department of Criminal Justice Training that
12 shall include instruction on the grieving process and best practices for
13 providing a notice of death to a spouse or next of kin and may include
14 instruction on other similar topics, as set out in KRS 64.185(4)(b). A
15 deputy coroner that has completed the course shall not be required to
16 retake the course.

17 (b) 1. Any deputy coroner subject to the training requirements of paragraph (a)
18 of this subsection who fails to complete the mandated training shall be
19 ineligible to perform the duties of deputy coroner, and may be
20 terminated by the coroner. The coroner shall make written notification
21 of the deputy coroner's ineligibility to perform his or her duties to the
22 deputy coroner and to the fiscal court or the legislative body of the
23 consolidated local government, charter county government, urban-
24 county government, or unified local government.

25 2. **The commissioner of the Department of Criminal Justice Training, or the**
26 **commissioner's designee, may grant the deputy coroner an extension of no**
27 **more than one hundred eighty (180) days in which to complete the training**

1 requirements of this subsection if there are extenuating circumstances
2 beyond the control of the deputy coroner that prevent that individual from
3 completing the training during the required time period. If the deputy
4 coroner is unable to complete the training due to an injury or illness that
5 prevents that individual from performing the duties of the deputy coroner,
6 the one hundred eighty day (180) extension shall begin on the date that the
7 deputy coroner resumes performing the duties of the deputy coroner. Any
8 deputy coroner who fails to successfully complete the training within the
9 time period granted by the extension shall be subject to the consequences set
10 out in subparagraph 1. of this paragraph.

~~11 The deputy coroner shall regain~~
~~12 his or her eligibility upon successful recompletion of the initial basic training~~
~~13 course referenced in KRS 64.185(4), which shall be evidenced by written~~
~~14 certification provided by the Department of Criminal Justice Training to the~~
~~15 coroner. Upon receipt of the certification, the coroner shall make written~~
~~16 notification of the reinstatement of eligibility to the deputy coroner and to the~~
~~17 fiscal court or the legislative body of the consolidated local government,~~
~~18 charter county government, urban county government, or unified local~~
~~19 government.~~

19 3. ~~The compensation of a deputy coroner who becomes ineligible to~~
20 ~~perform his or her duties under subparagraph 1. of this paragraph~~
21 ~~shall be modified as follows:~~

22 a. ~~From the coroner's written notification of ineligibility until the~~
23 ~~deputy coroner begins the basic training course mandated by~~
24 ~~subparagraph 2. of this paragraph, the deputy coroner shall receive~~
25 ~~no compensation;~~

26 b. ~~From the first day that the deputy coroner begins the basic training~~
27 ~~course mandated by subparagraph 2. of this paragraph until written~~

1 ~~notification of course outcome is received by the coroner, the~~
2 ~~deputy coroner shall be compensated at his or her previously~~
3 ~~established rate of compensation;~~

4 ~~c. — If the deputy coroner fails the basic training course mandated by~~
5 ~~subparagraph 2. of this paragraph, the deputy coroner shall receive~~
6 ~~no compensation from the date of receipt of notification of failure~~
7 ~~from Department of Criminal Justice Training to the coroner until~~
8 ~~the deputy coroner begins anew the basic training course mandated~~
9 ~~by subparagraph 2. of this paragraph, at which time the deputy~~
10 ~~coroner shall be compensated at his or her previously established~~
11 ~~rate of compensation; and~~

12 ~~d. — If the deputy coroner successfully completes the basic training~~
13 ~~course mandated by subparagraph 2. of this paragraph as~~
14 ~~evidenced by written certification provided by the Department of~~
15 ~~Criminal Justice Training to the coroner, the deputy coroner shall~~
16 ~~receive compensation as is normally determined for deputy~~
17 ~~coroners pursuant to statute.]~~